



CHAPTER ix.

An Act to confer further powers upon the Belfast Harbour Commissioners with respect to the levying of tolls rates and charges and for other purposes. [29th May 1919.] A.D. 1919

WHEREAS by the Belfast Harbour Act 1847 (in this Act called "the Act of 1847") divers earlier Acts relating to the port and harbour of Belfast were repealed and such of the powers and provisions of those Acts as were then applicable were consolidated and the Belfast Harbour Commissioners (in this Act called "the Commissioners") were incorporated with power to execute works and to borrow money and acquire lands and to levy rates as in that Act mentioned:

And whereas the powers and provisions of the Act of 1847 were extended and amended by the following Acts (namely):—

- The Belfast Port and Harbour Conservancy Act 1852;
- The Belfast Dock Act 1854;
- The Belfast Harbour Act 1870;
- The Belfast Harbour Commissioners Act 1871;
- The Belfast Harbour Act 1882;
- The Belfast Harbour Act 1883;
- The Belfast Harbour Act 1893;
- The Belfast Harbour Act 1898;
- The Belfast Harbour Act 1901; and
- The Belfast Harbour Act 1918;

and the Act of 1847 and the said subsequent Acts from 1852 to 1918 inclusive are in this Act called "the Belfast Harbour Acts":

And whereas there has been of late years partly as the result of the present war a considerable increase in the cost of
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A.D. 1919. labour and materials required by the Commissioners in carrying on the harbour undertaking and with a view to the efficient maintenance and development of the harbour undertaking it is expedient that the increased expenditure necessarily incurred by the Commissioners should be met by a corresponding increase in their powers of levying tolls rates dues rents and charges:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

Short title.

1. This Act may be cited as the Belfast Harbour Act 1919.

Increase of tolls &c.

2. As from the passing of this Act the existing powers of the Commissioners of charging tolls rates dues rents and charges of which the amount or rate is limited by any Act relating to their undertaking shall be increased so as to enable them to charge tolls rates dues rents and charges exceeding the amount or rate so limited by not more than thirty-three and one-third per centum and every such Act as aforesaid shall be read and have effect accordingly.

Provision in case of future purchase.

3. If the undertaking of the Commissioners is acquired otherwise than by agreement by any public body or trustees the Commissioners shall not be entitled to make any claim in respect of the powers conferred upon them by this Act Provided that nothing in this section shall prejudice the rights of any person entitled to any mortgage of or charge secured upon the undertaking or revenue of the Commissioners or any part thereof.

Costs of Act.

4. All costs charges and expenses preliminary to and of and incidental to the preparing applying for and obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Commissioners out of the harbour revenues or out of moneys to be borrowed for the purpose under the powers of the Belfast Harbour Acts.

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